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Case Number: 23NWCV00998 Hearing Date: July 9, 2026 Dept: P

CARLOS GOMEZ v. FORD

MOTOR COMPANY, ET AL.

CASE NO.: 23NWCV00998

HEARING: 07/09/2026 @ 10:30 AM

#16

TENTATIVE ORDER

Defendants Ford Motor Company and Norm Reeves Superstore's motion for summary adjudication as to the fifth and sixth causes of action are GRANTED.

Moving party to give notice.

Defendants Ford Motor Company (Ford) and Norm Reeves Superstore (Norm Reeves) (collectively, Defendants) move for summary adjudication and to the fifth and sixth causes of action in the first amended complaint (FAC).

Background

On March 30, 2023, Plaintiff Carlos Gomez (Plaintiff) filed this lemon law action against Defendants and Does 1 through 10. On August 8, 2023, Plaintiff filed the operative FAC. The FAC alleges that Plaintiff entered a warranty contract with Ford regarding a 2018 Ford F-150, VIN:

1FTEW1CPXJKC83936 (Subject Vehicle), which was manufactured and/or distributed by Ford. (FAC, ¶ 28.) The FAC alleges Plaintiff experienced defects and nonconformities to warranty within the warranty period. (FAC, ¶ 33.) Additionally, the complaint alleges that Ford committed fraud by allowing the Subject Vehicle to be sold without disclosing that its transmission was defective. (FAC, ¶ 79.) The FAC asserts five causes of action: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant or cross-defendant has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant or cross-defendant must support the motion “with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.’” (*Aguilar, supra*, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of proof, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68

Cal.App.4th 151, 166.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Request for Judicial Notice

Plaintiff requests the Court take judicial notice of seventeen documents from Avila v. Ford Motor Co.

[Avila], No. 22-CV-00542-PCP, 2026 WL 508364, at *8 (N.D. Cal. Feb. 24, 2026) and of technical service bulletins by Ford. Plaintiff contends that the seventeen documents from Avila are unsealed and thus part of the public record.

In opposition, Defendants argue that Plaintiff's contention that these documents are in the public record does not establish the requisite foundation or authentication to establish that these records are part of a court record. Defendants further argue that Plaintiff does not show how these documents are relevant to this action or the Subject Vehicle. (See Gbur v. Cohen (1979) 93 Cal.App.3d 296, 301 [“judicial notice, since it is a substitute for proof [citation], is always confined to those matters which are relevant to the issue at hand.”].)

As to the technical service bulletins, Defendants argue that these documents are subject to reasonable dispute.

Plaintiff's request for judicial notice is DENIED as to all the documents. The Court agrees with Defendants that Plaintiff provides no basis for the Court to determine whether the seventeen documents are part of the Avila case, and thus court records, and whether they are authenticated and relevant. Plaintiff solely attaches the exhibits themselves, without reference to any court documents. “[W]hile courts are free to take judicial notice of the existence of each document in a court

file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881, emphasis in original, citation omitted.) As to the technical service bulletins, the contents of these documents are disputed. Therefore, the Court cannot take judicial notice of these documents. (See Evid. Code, § 452, subd. (h) [court may take judicial notice of “facts and propositions that are not reasonably subject to dispute”].)

Evidentiary Objections

Defendants make 20 evidentiary objections to evidence raises in Plaintiff’s separate statement. The Court notes that evidentiary objections no. 1-18 are addressed in the above section on Plaintiff’s request for judicial notice.

Objections nos. 19 and 20 are SUSTAINED.

Discussion

Defendants move for summary adjudication as to the fifth cause of action asserted against Ford and sixth cause of action asserted against Norm Reeves.

Fifth

Cause of Action – Fraudulent Inducement-Concealment

Issue

No. 1: Knowledge

Ford moves for summary adjudication as to the fifth cause of action on the grounds that Plaintiff cannot establish Ford’s knowledge of the defect; Plaintiff cannot show a transactional relationship; and the claim is barred by the economic loss rule.

A defendant moving for summary judgment may show that a plaintiff cannot establish an element of a cause of action “by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar, supra, 25 Cal.4th at p. 854.) Therefore, “[c]ircumstantial evidence supporting a defendant’s summary judgment motion ‘can consist of “factually

devoid” discovery responses from which an absence of evidence can be inferred,’ but ‘the burden should not shift without stringent review of the direct, circumstantial and inferential evidence.’” (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 101, citation omitted.) “In moving for summary judgment, ‘[t]he defendant may ... present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.’” (Id., at p. 106-07, citing Aguilar, supra, 25 Cal.4th at p. 855.)

[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.

(Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.)

Ford argues that Plaintiff has no evidence that Ford had knowledge of a manufacturing defect in the Subject Vehicle at the time of the sale. To support this argument, Ford refers to Plaintiff’s response to special interrogatory, set one, no. 53 which requested Plaintiff list all facts that support the allegation that Ford concealed material facts from Plaintiff with the intent to defraud Plaintiff. (UMF, ¶ 6.) Plaintiff responses consisted of boilerplate objections and that “[s]ubject to and without waiving the foregoing objections...Information responsive to this request may be found in Plaintiff’s Complaint, and the Subject Vehicle’s repair history. Further, Plaintiff refers Ford to the documents produced in connection with Plaintiff’s Responses to Defendant’s Requests for Production, Set One, to the extent applicable.” (UMF, ¶ 6.) Then, to special interrogatory, set one, no. 54, requesting Plaintiff identify all responsive documents, Plaintiff responded with the same boilerplate objections and referred to the same document production. (UMF, ¶ 7.) Ford then refers to Plaintiff’s responses in a deposition confirming that no responsive documents were withheld. (UMF, ¶ 8.)

Ford shows that the document production which Plaintiff claims to include documents evidencing Ford's knowledge is limited to the Retail Installment Sale Contract (Sale's Contract) and accompanying disclosures, repair orders and receipts, communication with Ford, a copy of the vehicle's window sticker, DMV registration, and payment history. (UMF, ¶ 9.) Ford shows that these documents provide no evidence of Ford's alleged knowledge of a transmission defect at the time of sale, but rather, show a restated breach of warranty claim. Ford additionally points to other interrogatory responses by Plaintiff in which Plaintiff does not identify who manufacturer or designed any allegedly defective components, does not state whether it was a manufacturing or design defect, does not identify any individual at Ford with knowledge, and does not identify the date Ford knew about the defect. (UMF, ¶¶ 12-15.)

The Court finds that Ford meets its initial burden to show an absence of triable issues of material fact as to the knowledge element in the fraudulent concealment claim. "If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses." (Andrews, *supra*, 138 Cal.App.4th at p. 107.) Ford shows that Plaintiff responded to comprehensive interrogatories with boilerplate answers that are either wholly nonresponsive or restate their allegations.

In opposition, Plaintiff relies on documents which are part of Plaintiff's improper request for judicial notice, as discussed above. Therefore, Plaintiff does not meet its burden in raising a triable issue of material fact.

Issue

No. 2: Transactional Relationship

Ford additionally establishes that Plaintiff cannot establish a transactional relationship with Ford giving rise to a duty to disclose.

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a

disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer...or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.' [Citation.] 'Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.'" (Id., at p. 40-41, citing in part, Bigler-Engler v. Breg, Inc. [Bigler-Engler] (2017) 7 Cal.App.5th 276, 312.)

Ford argues that Plaintiff has no evidence of a direct transaction or direct dealings between Plaintiff and Ford. Ford points to the Sale's Contract to show that Plaintiff purchased the Subject Vehicle from Huntington Beach Ford and that Ford was not a party to the Sale's Contract. (UMF, ¶¶ 1-2.) As such, the Court finds that Ford meets its burden as to this argument, as well.

In opposition, Plaintiff argues that transactional privity is not required to bring a fraud claim. Plaintiff cites to Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 to argue that a lack of privity with a manufacturer does not bar fraud claims. Plaintiff also cites to authorities stating that the issuance of a warranty fulfills the transactional privity requirement. (See Scherer v. FCA US, LLC, 565 F.Supp. 3d 1184, 1194 (S.D. Cal. 2021); Atkinson v. Elk Corp. of Texas (2006) 142 Cal.App.4th 212, 229–30.)

As argued by Ford in reply, Dhital is inapposite as it deals with the sufficiency of allegations for purposes of a demurrer. (Dhital, supra, 84 Cal.App.5th at p. 844.)

["At the pleading stage (and in the absence of a more developed argument by Nissan on this

point), we conclude plaintiffs' allegations are sufficient."].) Ford also shows that Plaintiff's authorities predate *Bjoin v. J-M Manufacturing Co., Inc.* (2025) 113 Cal.App.5th 884, 902, which rejects a broad view of a duty to disclose relationship: "Bjoin posits a broad rule that a duty to disclose relationship is created between a manufacturer and a consumer when a manufacturer advertises its products to consumers or profits from the sale of its products to consumers. We do not agree that Bigler created such a broad duty to disclose." Ford counters Plaintiff's arguments that the issuance of an express warranty creates a transactional relationship on the grounds that no court has held this and runs contrary to the Supreme Court of California's reasoning in *Ford Motor Warranty Cases* (2025) 333 17 Cal.5th 1122, 1138, which distinguished between claims arising in contract versus from "separate statutory requirements and conventional fraud theories." Therefore, Plaintiff's arguments relying on a warranty to show transactional privity are not persuasive to raise a triable issue of material fact.

Issue

No. 3: Economic Loss Rule

Lastly, as to the fraudulent concealment cause of action, Ford argues that Plaintiff cannot establish evidence excepting his fraudulent concealment claims from the economic loss rule.

"In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) A fraudulent concealment claim survives the economic loss rule "if the elements of the cause of action can be established independently of the parties' contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the agreement." (*Rattagan*, supra 17 Cal.5th at p. 38.) "Warranty rules regulate the quality of the product bargained for and insulate a manufacturer from liability...that may arise when its product fails to meet a customer's needs but causes no physical injuries." (*Id.*, at p. 22.)

Here, Ford shows that Plaintiff confirmed in a deposition that he does not allege personal injury or physical damages other than to the Subject Vehicle arising out of the alleged fraudulent concealment. (UMF, ¶ 4.) Therefore, Ford meets its burden. (*Andrews*, supra, 138 Cal.App.4th at p.

107.)

In opposition, Plaintiff again relies on Dhital to argue that a fraudulent concealment claim is not barred if it arises out of a separate tort duty. (Dhital, supra, 84 Cal.App.5th at p. 843.) Plaintiff argues that his claim is based on Ford's superior knowledge of a pre-existing transmission defect that it failed to disclose.

As discussed above, Plaintiff does not establish admissible evidence showing Ford's superior knowledge of a pre-existing transmission defect that it failed to disclose. Therefore, Plaintiff does not raise a triable issue as to whether his fraudulent inducement-concealment claim is barred by the economic loss rule.

Sixth

Cause of Action – Negligent Repair; Issue No. 4

Defendants argue that Plaintiff cannot establish his negligent repair cause of action because it is barred by the economic loss rule.

Defendants again rely on Plaintiff's discovery responses. When asked to identify documents to support his negligent repair claim, Plaintiff responded by pointing to the same document production as to his fraud claim. (UMF, ¶ 19.) Plaintiff additionally failed to disclose any damages proximately caused by the alleged negligent repair in his responses to special interrogatories, set one, nos. 24 and 26. (UMF, ¶ 20.) Further, Plaintiff testified that he was not harmed by the Subject Vehicle. (UMF, ¶ 21.) Based on the foregoing, Defendants meet their burden in showing that Plaintiff does not possess and cannot reasonably possess evidence to establish a basis for tort recovery to support the negligent repair claim.

In opposition, Plaintiff argues that his negligent repair claim falls within a component exception to the economic loss rule. "California decisional law has long recognized that the economic loss rule does not necessarily bar recovery in tort for damage that a defective product (e.g., a window) causes to other portions of a larger product (e.g., a house) into which the former has been incorporated." (Jimenez v. Superior Court (2002) 29 Cal.4th 473, 484.)

The Court first notes that the component exception is

outside of the scope of the pleadings. The pleadings serve as the “outer measure of materiality” in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258.) The FAC alleges that Norm Reeves “owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards,” and “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle.” (FAC, ¶¶ 95-96, emphasis added.) Therefore, the FAC does not allege that Norm Reeves negligently repaired a component of the Subject Vehicle which then caused damages to the Subject Vehicle.

Additionally, Plaintiff’s argument is not supported by admissible evidence. Therefore, Plaintiff does not raise a triable issue of material fact as to his negligent repair claim.

Accordingly, Defendant’s motion for summary adjudication is GRANTED.